

CV-24-006059 ROMAN, CECILIA vs CITY OF MODESTO - Defendant's Motion for Summary Judgment - GRANTED, in part, DENIED, in part.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: A public entity is immune from common-law negligence liability pursuant to Government Code § 815 absent statutory authorization. Plaintiff does not oppose this position. Defendant has established entitlement to judgment as a matter of law on this count. Accordingly, Defendant is GRANTED summary adjudication as to Plaintiff's First Cause of Action, Count One (Negligence); and Second Cause of Action (General Negligence). Regarding Plaintiff's First Cause of Action (Count Three

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Regarding Plaintiff's First Cause of Action (Count Three - Dangerous Condition of Public Property) after reviewing the evidence and testimony adduced, the court concludes that triable issues of material fact exist herein as to whether the offset was trivial as a matter of law and whether Defendant lacked constructive notice of any dangerous condition.

With respect to dangerous condition, Plaintiff has submitted evidence that the sidewalk uplift measured approximately 1.5 inches, that the City classified the repair as a high-priority repair, that the sidewalk was repaired immediately after inspection, and that Plaintiff's retained expert opines the condition constituted a foreseeable tripping hazard and was not trivial. (Gsell Declaration, Plaintiff's Exhibit B, Plaintiff's Exhibit C, Plaintiff's Exhibit L; Plaintiff's Exhibit G, pp 23, 30 and 52) Plaintiff also submits evidence that a bystander reported having previously tripped at the same location. (Plaintiff's Exhibit I, Ontiveroz Declaration, p. 47). Construing the evidence in the light most favorable to Plaintiff, as is the standard on a motion for summary judgment, a reasonable trier of fact could conclude the condition created a substantial risk of injury.

Accordingly, the Court cannot determine as a matter of law that the condition was trivial. (Gov. Code, §§ 830, 830.2; Stack v. City of Lemoore (2023) 91 Cal.App.5th 102; Stathoulis v. City of Montebello (2008) 164 Cal.App.4th 559; Fielder v. City of Glendale (1977) 71 Cal.App.3d 719, 734).

Triable issues also exist regarding constructive notice. Plaintiff has produced evidence that:

1. Neighbor Moises Martinez observed the uplifted condition for approximately ten years before repair; (Plaintiff's Exhibit A);
2. Google Street View imagery purportedly depicts the condition years before the incident;(Plaintiff's Exhibit D);
3. Grover Landscaping crews worked in the immediate vicinity repeatedly for years under contract with the City (Plaintiff's Exhibit E, City and Grover Contract Tye declaration Plaintiff's Exhibit H and;

4. The landscaping contract required reporting hazardous sidewalk conditions to the City. (Plaintiff's Exhibit E, City and Grover Contract, Tye declaration P's Exhibit H),

Although the City has produced evidence that its records contain no prior complaints, claims, or lawsuits relating to the sidewalk condition, (Defendants Exh. 7, Shoars declaration paragraph 7., Defendant's Exhibit 8, Braley Declaration) Plaintiff's evidence is sufficient to create a triable dispute concerning whether the condition existed for such a period of time and was of such an obvious nature that the City should have discovered it in the exercise of due care. (Gov. Code, § 835.2.)

Accordingly, summary adjudication of Count Three is DENIED.

Therefore, Defendant's Motion for Summary Judgment is DENIED.

Defendant's request for dismissal of the Endo Defendants' Cross-Complaint is also DENIED.

The request is contingent upon entry of summary judgment in favor of the Defendant. Because summary judgment is denied, the cross-complaint remains pending.

Evidentiary Rulings:

Objection Ruling

No. 1 (Shoars ¶7 records search) Overruled

No. 2 (Shoars notice conclusion) Sustained in part as to what the records revealed / Overruled in part as to improper lay conclusion.

No. 3 (Braley ¶1) Overruled

No. 4 (Braley ¶2) Overruled

No. 5 (Braley ¶4) Overruled

No. 6 (Braley ¶5) Overruled